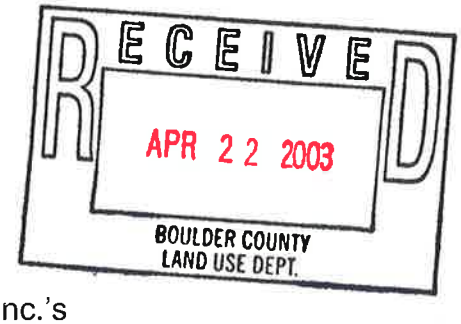
Banks and Gesso, LLC

720 Kipling St.,Suite117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

April 21, 2003



Mr. David Callahan
Manager of Current Planning
Boulder County Land Use Department
Courthouse Annex Building
P.O. Box 471
Boulder, CO 80306

RE: Additional Information in Consideration of Cemex, Inc.'s Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit Has Lapsed as Defined in Article 4-604(C) of the Land Use Code.

Dear David:

Attached please find two additional documents in support of Cemex's position that the above referenced permit has not lapsed. These documents are:

- December 8, 1995—Title V air permit application submitted to Colorado Air Pollution Control Division, including whole or shredded tires listed under section 13 "Process fuel usage" of application form.
- October 23, 1998—Revision to Title V permit application submitted to the Colorado Air Pollution Control Division, including whole or shredded tires listed under section 13 "Process fuel usage" of application form.

We are submitting only the cover letters and relevant portion of the application form due to the size of the air permit application package. Please let me know if you believe the Board of County Commissioners would benefit from additional information.

Sincerely,

Paul Banks
Principal

attachments

cc: Mr. John Lohr, Cemex, Inc.
Mr. Ray Petros, Esq., Petros & White, LLC

Southdown
Lyons Cement Plant

Mr. James A. King
Colorado Department of Public Health & Environment
Air Pollution Control Division
APCD-SS-B-1
4300 Cherry Creek Drive South
Denver, Colorado 80220

December 8, 1995

Re: Title V Permit Application
Southdown, Inc., Lyons Cement Plant

Dear Mr. King:

Enclosed is the Southdown, Inc., Lyons Cement Plant application for a Title V permit filed pursuant to Regulation 3, Part C of the Colorado Air Quality Control Commission. Based on information and belief formed after reasonable inquiry, the Southdown, Inc., Lyons Cement Plant is in compliance, as of the date of this letter, with all applicable requirements as listed in this application, except for those sources for which a compliance schedule is being submitted.

The information in this permit application not contained in an existing applicable requirement is provided for informational purposes or to demonstrate compliance; it may not be incorporated into the Title V permit, either explicitly or by incorporating this application by reference. As reflected in 40 CFR 70.1(b), the Title V program is intended to assure compliance with all applicable requirements, as defined in 40 CFR 70.2, but not to impose any substantive new requirements.

Also, This application seeks to make certain changes to existing permits and to cover previously unpermitted process fugitive emission sources and fugitive dust sources. We are filing revised APENS to be consistent with the emission estimates contained in this application. Per your guidance at our meeting on August 28, 1995, we have included the Dowe Flats quarry (not yet operating) as part of this permit application.

Finally, once the Title V permit is issued, we intend to set up a data base management and tracking system for complying with the monitoring, recording and reporting requirements in the final permit. We would be happy to review this system and its reports during future on-site inspections.

P. O. Box 529 • Lyons, Colorado 80540
(303) 823-2100 • Fax: (303) 823-2199

Southdown, Inc., Lyons Cement Plant looks forward to working with the Colorado Air Pollution Control Division in the development and issuance of the Title V permit. Please contact myself or Steve Mossberg if you have any questions or require additional information.

Sincerely yours,

John Lohr
Plant Manager

DKB/jd

Enclosures

Operating Permit Application
Colorado Department of Public Health and Environment
Air Pollution Control Division

MISCELLANEOUS PROCESSES

FORM 2000-308
Rev 06-95

SEE INSTRUCTIONS ON REVERSE SIDE

1. Facility name: Southwestern Portland Cement
2. Facility identification code: CO 0130003
3. Stack identification code: S016
4. Process (Unit) code: P007
5. Unit description: Kiln Burning
6. Indicate the control technology status. X Uncontrolled X Controlled
   If the process is controlled, enter the control device code(s) from the appropriate form(s):
   2000-400 _____ 2000-401 _____ 2000-402 _____ 2000-403 _____
   2000-404 _____ 2000-405 _____ 2000-406 _____ 2000-407 C016, C022
7. Actual annual process rate for '99: NA
8. Date first placed in service: 00/00/68 Date of last modification: Same
9. Normal operating schedule: 24 hrs/day 7 days/wk 7896 hours/yr
10. Describe this process (please attach a flow diagram of the process). Attached? ☐
    This process involves the heating of raw meal in a rotary kiln to produce clinker

11. List the types and amounts of raw materials used in this process:

Material	Storage/material handling process	Actual usage	Units	Maximum usage	Units
Raw Meal	Pneumatically conveyed			110	TPH
Clean-up solvents	NA			NA	NA
Other (specify)	NA			NA	NA

12. List the types and amounts of finished products:

Material	Storage/material handling process	Actual amount produced	Units	Maximum amount produced	Units
Clinker	Drag Conveyors & Elevators			81	TPH

13. Process fuel usage:

Type of fuel	Maximum heat input to process million BTU/hr.	Actual usage	Units	Maximum usage	Units
Coal	340			14.64	TPH
Natural Gas (Backup)	317			317,440	scf/H
Whole or shredded tires	75			2.5	TPH
Petroleum coke	68			2.13	TPH

14. Describe any fugitive emissions associated with this process, such as outdoor storage piles, unpaved roads, open conveyors, etc.: Fugitive emissions involve the conveying of raw meal to the kiln system

***** For this emissions unit, identify the method(s) for compliance demonstration by completing Form 2000- 500, ***** DESCRIPTION OF METHODS USED FOR DETERMINING COMPLIANCE. Attach Form 2000-500 and its attachment(s) to this form.

***** Please complete the Air Pollution Control Permit Application Forms 2000-600 and 2000-601 for this Unit. *****



October 23, 1998

Mr. James A. King
Colorado Department of Public Health
and Environment
Air Pollution Control Division
APCD-SS-B1
4300 Cherry Creek Drive South
Denver, CO 80220

Re: Title V Permit Revision Application
Southdown Lyons Cement Plant

Dear Mr. King:

Enclosed are four copies of the revised Title V permit application for our cement plant in Lyons, Colorado. This revision reflects the five new construction permits recently issued by your office: the Title V application has been restructured somewhat to reflect the "emission units" in the construction permits. We are submitting a complete set of forms rather than only changed pages and a revised process flow diagram; the plot plan and emission calculations are unchanged from our original submittal. Other significant changes are as follows:

1. Southdown is offering to accept lower emission limits for lead from the kiln main stack that better reflects our estimate of actual emissions at maximum operating capacity (see Form 2000-604 for emission unit P007).

2. We have revised our estimate of HCl emissions from the kiln using an emission factor developed by the Portland Cement Association.

3. We are requesting a stack testing frequency for the dryer, kiln and clinker cooler that is consistent with the proposed MACT rule for Portland cement plants.

4. We have included the size and throughput limits for the outdoor clinker pile from permit 84-B0-0369F, rather than the limits from permit 98-B0-0259 (AIRS 015), which we believe we established in error (see Form 2000-604 for P010A).

Please contact myself or Steve Mossberg at (303) 823-2100 if you have any questions or require additional information.

Sincerely yours,

John Lohr
Plant Manager

Enclosures

Operating Permit Application
Colorado Department of Public Health and Environment
Air Pollution Control Division

MISCELLANEOUS PROCESSES

FORM 2000-306
Rev 06-95

SEE INSTRUCTIONS ON REVERSE SIDE

1. Facility name: Southdown Lyons Plant
2. Facility identification code: CO 0130003
3. Stack identification code: S016
4. Process (Unit) code: P007
5. Unit description: Kiln Burning
6. Indicate the control technology status. X Uncontrolled X Controlled
   If the process is controlled, enter the control device code(s) from the appropriate form(s):
   2000-400 ____ 2000-401 ____ 2000-402 ____ 2000-403 ____
   2000-404 ____ 2000-405 ____ 2000-406 ____ 2000-407 C016, C022
7. Actual annual process rates for 19__:
8. Date first placed in service: 00/00/68 Date of last modification: 1993
9. Normal operating schedule: 24 hrs/day 7 days/wk 8064 hours/yr
10. Describe this process (please attach a flow diagram of the process): Attached? x
    This process involves the heating of raw meal in a rotary kiln using oxygen injection to improve thermal efficiency to produce clinker

11. List the types and amounts of raw materials used in this process:

Material	Storage/material handling process	Actual usage	Units	Maximum usage	Units
Raw Meal	Pneumatically conveyed			120 (new, dry)	TPH
Clean-up solvents	NA			NA	NA
Other (specify)	NA			NA	NA

12. List the types and amounts of finished products:

Material	Storage/material handling process	Actual amount produced	Units	Maximum amount produced	Units
Clinker	Drag Conveyors & Elevators			81	TPH

13. Process fuel usage:

Type of fuel*	Maximum heat input to process million BTU/hr.	Actual usage	Units	Maximum usage	Units
Coal	360			16.0	TPH
Natural Gas (Backup)	360			360,000	scf/H
Whole or shredded tires	75			2.5	TPH

14. Describe any fugitive emissions associated with this process, such as outdoor storage piles, unpaved roads, open conveyors, etc.: Fugitive emissions involve the conveying of raw meal to the kiln system

***** For this emissions unit, identify the method(s) for compliance demonstration by completing Form 2000- 500, ***** DESCRIPTION OF METHODS USED FOR DETERMINING COMPLIANCE. Attach Form 2000-500 and site attachment(s) to this form.

***** Please complete the Air Pollution Control Permit Application Forms 2000-600 and 2000-601 for this Unit. *****

*Typical fuel analyses attached.